

24LBCV02385 24LBCV02385

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24LBCV02385 Hearing Date: June 30, 2026 Dept: S27

1. Background

Facts

Plaintiff, Delmy Duran filed this action against Defendants, St. Mary Medical Center, Dignity Health, and Does 1-50 for damages arising out of an incident that occurred at Defendants' hospital. Plaintiff alleges she presented at Defendants' facility and was assaulted and battered by Doe 1, who has been identified as an EMT nurse named Alex Perez, while in the waiting room.

Plaintiff's complaint includes causes of action for professional negligence, assault and battery, IIED, NIED, and negligent hiring, training, and retention. Only the causes of action for professional negligence and negligent hiring, training, and retention are pled against the entity defendants; the other three causes of action are pled against Doe 1 only.

2. Motion

for Summary Judgment

a.

Burdens

on Summary Judgment

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of

law.” (Code Civ. Proc. §437c(c).) Where a defendant seeks summary judgment or adjudication, he must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.”

(Id. at §437c(o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (Ibid.)

The moving party bears the initial

burden of production to make a prima facie showing that there are no triable issues of material fact. (Aguilar v.

Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be

established or (2) that there is a complete defense to that cause of action. (Id. at §437c(p).) A defendant may discharge this burden by

furnishing either (1) affirmative evidence of the required facts or (2)

discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff’s case. If a defendant chooses the latter option he or she must present evidence “and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence....” Aguilar, supra, 25 Cal.4th at 865-66,

[A] defendant may simply show the

plaintiff cannot establish an essential element of the cause of action “by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Id. at p. 854.) Thus,

rather than affirmatively disproving or negating an element (e.g., causation), a defendant moving for summary judgment has the option of presenting evidence reflecting the plaintiff does not possess evidence to prove that element. “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing” to support an essential element of his case. (Aguilar, supra, at p. 855.) Under the latter approach, a defendant’s initial evidentiary showing may “consist of the deposition

testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (Lona v. Citibank, N.A., supra, 202 Cal.App.4th at p. 110.)

In other words, a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred. (Scheidt v. Dinwiddie Construction Co. (1999) 69 Cal.App.4th 64, 83.)

Thus, a moving defendant has two means by which to shift the burden of proof under the summary judgment statute: "The defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon. [Citation.] [Or a]lternatively, the defendant may utilize the tried and true technique of negating ('disproving') an essential element of the plaintiff's cause of action." (Brantly v. Pisaro (1996) 42 Cal.App.4th 1591, 1598.) Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1103.

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Id. at §437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

b.

Undisputed

Facts

The very basic facts relating to this motion are undisputed. Plaintiff presented at Defendants' emergency room. She did not believe she was being seen quickly enough, and she entered the examination area. She was told by multiple people to leave the examination area, but she did not. Ultimately,

an EMT nurse named Alex Perez touched her, which resulted in bruises on her arm in the location where she had been touched.

c.

Evidentiary

Objections

Both parties submitted expert declarations with the motion and opposition, and both parties object to portions of those declarations via the opposition and reply. The objections are overruled. The Court has considered all evidence submitted by both parties with the motion and opposition.

d.

Analysis

Plaintiff, through the expert declaration of Nurse Balian, raises triable issues of material fact concerning whether the amount of pressure applied by Perez was appropriate.

Defendants' arguments in reply center on Plaintiff's credibility, which is an issue for the trier of fact to decide.

The motion for summary judgment is denied.

Defendants are ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If any party does not submit on the tentative, the party should make arrangements to appear remotely at the hearing on this matter.